

Kora Prasad Padhi And Others vs State Of Odisha Opposite Party on 8 December, 2021

Author: R.K. Pattanaik

Bench: R.K. Pattanaik

IN THE HIGH COURT OF ORISSA AT CUTTACK

CRLMC No.4075 of 2016

Kora Prasad Padhi and others

..... Petitioner
Mr. Debasis Sarangi, Advocate

-Versus-

State of Odisha

..... Opposite Party
Mr. K.K. Gaya, Addl. Standing Counsel

CORAM:
JUSTICE R.K. PATTANAIAK

ORDER

Order No.

06.12.2021

06. 1. Instant application under Section 482 is filed by the

petitioners with a prayer to quash the criminal proceeding in G.R. Case No.3 of 2013 pending in the file of learned J.M.F.C., Hinjilicut on the ground that there has been a compromise between petitioner No.3 and OP No.2.

2. Heard.

3. In fact, OP No.2 is the wife of petitioner No.3 but then, she had lodged an F.I.R. which led to the initiation of the criminal proceeding after registration of Hinjili P.S. Case No.3 (3) dated 04.01.2013 which ultimately resulted in filing of charge sheet, where upon, the learned court below took cognizance of the offences under Section(s) 498A/506/406/34 IPC and Section(s) 4/6 D.P. Act and issued summons to the petitioners by order dated 02.08.2013. However, in the meantime, there has been a settlement between both the sides and therefore, the quashing of the criminal proceeding in G.R. Case No.3 of 2013 has been asked for.

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4. Learned counsel for the petitioners submitted that a joint application under Section 13(B) of the

Hindu Marriage Act, 1955 was filed before the court of learned Civil Judge (Senior Division), Chhatrapur, Ganjam for a mutual divorce between petitioner No.3 and OP No.2 and in that, an order was passed on 01.05.2017 vide MAT Case No.9 of 2016, whereby, the marriage between the parties was dissolved on consent. A certified copy of said order and decree is filed by the learned counsel for the petitioners under Memo dated 29.11.2021. On perusal of the same, it is made to understand that the court concerned allowed application under Section 13(B) of the Hindu Marriage Act, 1955 as reconciliation failed between the parties and as both had been staying separately since 2011 and as a settlement, OP No.2 was paid with an amount of Rs.8.00 lac as permanent alimony.

5. It is apprised to the Court that as per the terms and conditions under clause (vii) of the application under Section 13(B) of the Hindu Marriage Act, 1955, the parties had an agreement to withdraw or terminate the proceeding pending before the learned court below. A copy of said application is at Annexure-2. Even a payment of Rs.1,83,670/- as a part payment towards permanent alimony received by OP No.2 under Annexure-3 is brought to the notice of the Court. After the aforesaid developments, the parties have approached this Court for quashing of the criminal proceeding vide G.R. Case No.3 of 2013.

6. The settled position of law is that even if offences alleged in a criminal proceeding not to be compoundable, it can still be quashed keeping in view the larger interest of the parties. In plethora of decisions, the Supreme Court has held and observed that there is no bar in exercising powers under Article 226 of the Constitution of India and also Section 482 Cr.P.C. in order to // 3 // quash a criminal proceeding, even when the offences are not compoundable or it is required to advance the cause of justice. A reference may be had to the celebrated judgment of the Supreme Court in the case of B.S. Joshi and others Vrs. State of Haryana and another decided on 13.03.2003 in SLP (Criminal) No.3416 of 2002, wherein, it has been observed that in case of amicable settlement and resolution of matrimonial dispute between the parties and for the sake of their interest and so as to set at rest all litigations pending between them, jurisdiction under Section 482 Cr.P.C. may be exercised which is not limited by any restrictions.

7. In view of the above and so as to ensure an end to the litigation and taking into account the compromise and the agreement arrived at between the parties, the Court is of the considered view that the proceeding in G.R. Case No.3 of 2013 should be quashed to serve best interest of the parties.

8. Hence, it is ordered.

9. In the result, application under Section 482 Cr.P.C. stands allowed. As a consequence, the proceeding in G.R. Case No.3 of 2013 pending in the file of learned J.M.F.C., Hinjilicut is hereby quashed.

10. The CRLMC is accordingly disposed of.

(R.K. Pattanaik) Judge KC Bisoi